

Proposed House Rules

Nā Hale O Mākena

Association of Apartment Owners of Nā Hale O Mākena · REVIEW DRAFT v2026-08-06B

REVIEW DRAFT — NOT ADOPTED

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Status: Proposed revision — **not yet adopted**. Pending Board review, counsel review, and adoption by Board resolution. Until adopted, the operative rules remain the House Rules dated April 29, 2026.

Source references. Each provision carries a bracketed source tag for Board review: **Prior HR** (House Rules 2026.04.29 SS-clean), **Bylaws**, **Decl** (Declaration/CC&Rs), **HRS/HAR** (statute/regulation), **Fire Code** (NFPA 1 as adopted under the Hawaii State Fire Code, HRS §132), or **Robert Sutor Recommended**. *These tags are a review aid and should be stripped before adoption — except items tagged "Legal Confirmation Required," which flag matters awaiting counsel and should remain until resolved.*

Marker legend. REDUNDANT / OVERLAP / CONFLICT = relationship to the Unit Modification Policy (UMP), or an internal duplicate. Citation flag = the provision’s own source. Required by = an outside authority mandates the rule. These tags are a review aid and should be stripped before adoption — except items tagged “Legal Confirmation Required,” which flag matters awaiting counsel and should remain until resolved.

1 Contact Info: General & Emergency

1.1 Purpose and How to Use These Rules

These Rules and Regulations ("House Rules") govern day-to-day use of the Project by owners, occupants, tenants, and guests. They are organized by property element and subject so that any provision can be cited precisely (for example, "House Rule 9.4"). The Owner Quick Reference handout uses these same section numbers.

1.2 Authority to Make Rules

These House Rules are adopted by the Board of Directors of the Association of Apartment Owners of Na Hale O Makena (the "Association") under the authority of the Declaration, the Bylaws, and HRS Chapter 514B. They govern the details of the operation and use of the Project and supplement, but do not replace, the Declaration and Bylaws.

[Prior HR §1.1; Bylaws §6.1; HRS §514B-104]

1.3 Who to Call

Role	Contact
Property address	4955 Makena Road, Makena, Maui, Hawaii 96753 · TMK (2) 2-1-7:101
Life-safety emergency (fire, medical, crime)	Call 911 first , then notify the Resident Manager
Resident Manager	Molly Duncan · cell (808) 264-6256 · managernhom@hotmail.com · on-site office — primary point of contact for owners, occupants and guests
Managing Agent	Destination Maui, Inc. (DMI) — the Association's managing agent. Account executive for the Association: Rena Tamura · direct (808) 866-5979 · rena@destinationmaui.net — do not contact except in an emergency; see below
Association website	nhomaoao.com

The Resident Manager is the primary point of contact for owners, occupants and guests. Do not contact the Managing Agent or its account executive directly except in an emergency, or where these House Rules specifically provide otherwise. All other matters go to the Resident Manager.

[Prior HR §1.2, §1.10; Resident Manager cell added per Robert Sutor Recommended; direct-contact restriction — Robert Sutor Recommended]

1.3.1 When to Call — Emergencies vs. Operational Issues

Life-safety emergencies — fire or smoke, a medical emergency, a crime in progress, or a person trapped or injured — **call 911 first**, then notify the Resident Manager.

Operational issues, during office hours or after hours — such as an **elevator not operating, a vehicle entry gate not operating**, or other building or utility failures — call the **Resident Manager at cell (808) 264-6256**; if the Resident Manager is unavailable, call the Managing Agent's account executive (Rena Tamura). A **person stuck in an elevator** should be reported to the Resident Manager immediately, and **if the person is in distress or cannot be released promptly, call 911**.

[Robert Sutor Recommended]

1.4 Binding Effect

These House Rules bind every owner, occupant, tenant, guest, invitee, employee, agent, and contractor present at the Project. Each owner must ensure that every person occupying or visiting the owner's apartment at the owner's invitation or authority complies with them.

[Prior HR §1.3; Bylaws §2.2, §2.3]

[Required by: Bylaws §2.2; §2.3]

1.5 Owner Responsibility

An owner is responsible and liable for any violation by the owner's family, occupants, tenants, guests, invitees, agents, employees, and contractors, including all resulting fines, damage, and costs of enforcement.

[Prior HR §1.4]

[Required by: Bylaws §2.3; HRS §514B-104(c)]

1.6 Precedence of Governing Documents

In the event of a conflict, the order of precedence is: (a) applicable law; (b) the Declaration; (c) the Bylaws; (d) these House Rules; (e) Board-adopted policies. Any provision that conflicts with a superior document is deemed modified to the minimum extent necessary to conform.

[Prior HR §1.5; Decl ¶18]

[Required by: Decl ¶18 (2007 Amend. ¶19); Bylaws §2.5]

1.7 Limitation of Liability

Neither the Association, the Board, the Managing Agent, the Resident Manager, nor any employee or agent of any of them is liable for loss, damage, or injury to persons or property arising from use of the Project, except to the extent caused by their own gross negligence or willful misconduct. Use of all amenities is at the user's own risk.

[Prior HR §1.7]

1.8 Fair Housing Compliance

The Association complies with the federal Fair Housing Act, HRS Chapter 515, and Hawaii Administrative Rules Chapter 12-46. Any provision of these House Rules yields to the Association's obligation to grant reasonable accommodations and permit reasonable modifications for persons with disabilities. See Section 8.8-Reasonable Modifications, and Section 16-Support Animals.

[Prior HR §1.8; HRS Ch. 515; HAR §12-46-306; 42 U.S.C. §3604(f)]

[Required by: 42 U.S.C. §3604(f)(3); HRS §515-3(a)(8)–(9)]

1.9 Availability of These Rules

Current House Rules are provided to each owner, posted at the on-site office, and available on the Association website. An owner who leases an apartment must provide a copy to the tenant. See Section 3.6-Leasing.

[Prior HR §1.9]

1.10 Complaints

Non-emergency complaints must be made in writing to the **Resident Manager only**, and must not be directed to the Managing Agent. Anonymous complaints may be logged but will not ordinarily support a fine.

[Prior HR §1.10]

1.11 No Direction of Employees or Vendors

Owners, occupants, and guests must not direct, instruct, or interfere with Association employees, the Resident Manager, or Association vendors and contractors. All requests go through the Resident Manager. See Section 17-Association Staff & Vendors.

[Prior HR §1.11]

1.12 Owner Contact Information

Each owner must keep on file with the Association (through the Managing Agent and the Resident Manager) a current mailing address, telephone number, and email address, and a 24-hour emergency contact. Notices sent to the address last on file are effective whether or not actually received. Owners must notify the Managing Agent of a sale or transfer within ten (10) days.

[Bylaws §10.9 (address on file); telephone, email, 24-hour contact, and 10-day sale notice — Robert Sutor Recommended]

1.13 Amendment

These House Rules may be amended by the Board at a duly noticed meeting. Owners will be given notice of amendments, which take effect on the date stated by the Board.

[Prior HR §1.12; Bylaws §6.3]

2 Definitions

2.1 Defined Terms

Act — HRS Chapter 514B, as amended.

Apartment / Unit — a unit as defined in the Declaration.

Association — the Association of Apartment Owners of Na Hale O Makena.

Board — the Board of Directors of the Association.

Cabana — the Recreation Cabana and its adjoining lanai and deck area, referred to historically as the Pavilion. See Section 10-Cabana.

Common Elements — everything in the Project that is not part of an individual apartment and is not a limited common element, as defined in the Declaration. Common elements include, for example: the building structures and roofs; exterior and perimeter walls and their finished surfaces (including the stucco); elevators, hallways, stairways, and walkways; lobbies and other common ways; roads, driveways, and guest parking areas; the swimming pool and jacuzzi, the cabana, and the gym; the grounds, landscaping, irrigation, fences, gates, and retaining walls; mailbox and trash areas; and the pipes, wires, ducts, and utility lines that serve more than one apartment. (Assigned covered parking stalls and lanais are *limited* common elements — see the next definition.)

[Declaration §5.1; plain-language examples — Robert Sutor Recommended]

Guest — a person present at the Project at the invitation of an owner or occupant, whether or not that person stays overnight, who is not an owner, a tenant, or another occupant of the apartment. A guest whose stay exceeds the limits in Section 4.2-Length of Guest Stays, is treated as a tenant, and the occupancy becomes subject to Section 3.3-Minimum Rental Period; No Timesharing.

Limited Common Elements — common elements reserved for the exclusive use of a particular apartment, as defined in the Declaration. They include each apartment's assigned covered parking stall and the storage locker immediately in front of it, its assigned mailbox, and its lanai — and any other common element reserved for the exclusive use of a single apartment.

[Declaration §5.2; plain-language examples — Robert Sutor Recommended]

Managing Agent — the managing agent engaged by the Board.

Occupant — any person occupying an apartment, including an owner in residence, a tenant, and any overnight guest.

Owner — a record owner of an apartment.

Project — Nā Hale O Mākena: the Land and all improvements now or hereafter placed on it, including the six project buildings and the forty apartments they contain, the common elements and limited common elements, the recreation cabana, the pool and jacuzzi, the gym, the parking areas, and all grounds, landscaping, structures, and appurtenances.

[Prior HR §2.1 as revised; per recorded By-Laws Art. I §1.1; composition per recorded Declaration ¶4.2]

Resident Manager — the on-site resident manager employed by the Association.

Support Animal — an animal that qualifies as a service animal, assistance animal, comfort animal, or emotional support animal under the federal Fair Housing Act, HRS Chapter 515, or Hawaii Administrative Rules § 12-46-306, **and upon which an Owner or Occupant with a disability depends for assistance.** The term is used throughout these House Rules as a single defined term encompassing that entire statutory category, and is not limited to emotional support animals. It does not reach an animal that meets none of those descriptions or on which no person with a disability depends. See Section 16-Support Animals.

[Prior HR §2.1; Support Animal definition per Robert Sutor Recommended, statutory category preserved]

[Required by: HRS §515-3(b); HAR §12-46-306(a)(1)]

2.2 Undefined Terms

Terms not defined here have the meaning given in the Declaration, the Bylaws, or the Act.

[Prior HR §2.2]

3 Occupancy & Use of Apartments

3.1 Compliance with Law

Apartments must be used in compliance with all applicable federal, state, and county laws, ordinances, and regulations.

[Prior HR §3.1]

3.2 Residential Use Only

Apartments may be used only for residential purposes. No trade, business, profession, commercial enterprise, or manufacturing may be conducted in or from an apartment or anywhere on the Project. A home office producing no client traffic, employees, signage, or deliveries beyond ordinary residential volume is not a violation of this rule.

[Prior HR §3.5; Decl ¶8]

[Required by: Decl §8(a) (2009 Amend.)]

3.3 Minimum Rental Period; No Timesharing

No apartment may be rented, leased, or otherwise made available for occupancy for a term of less than **one hundred eighty (180) consecutive days**. Timesharing, interval ownership, vacation-club, and rotating-occupancy arrangements are prohibited.

[Prior HR §3.6; Decl §8(a) as amended 2009]

[Required by: Decl §8(a), 2nd Amend. rec. 2009-03-05]

3.4 Rental Enforcement

To enforce Section 3.3-Minimum Rental Period; No Timesharing, the Association may require, and the owner must provide within ten (10) days of written request: a copy of the executed lease showing the term, with rent amounts redacted at the owner's option; the names of all occupants; and a written statement identifying every platform or service on which the apartment has been advertised in the preceding twelve months.

[Required by: Decl §8(a) (2009 Amend.)]

3.4.1 Short-term or Vacation Rental or Use for Either Direct or Indirect Compensation

Renting, leasing, or otherwise making an apartment available for occupancy or use for any period of **less than one hundred eighty (180) consecutive days in exchange for direct or indirect compensation** violates the Association's governing documents — Declaration Section 8(a) (as amended 2009) and Section 3.3-Minimum Rental Period; No Timesharing. Any occupancy or use of an apartment by

transients for less than 180 days is also a transient vacation rental prohibited under the Maui County Code (MCC §19.37.010), unless a County permit or exception authorizes it.

[Decl §8(a), 2nd Amend. rec. 2009-03-05; MCC §§19.04.040, 19.37.010]

Direct or indirect compensation. Use of an apartment by any person other than the owner, for less than 180 days, in exchange for **direct or indirect** compensation is prohibited. Indirect compensation includes, but is not limited to:

- services provided to the owner, on or off the property, in exchange for use of the apartment;
- allowing employees of a related or controlling corporation or other entity to use the apartment in lieu of a bonus or other compensation;
- exchanging use of the apartment for the use of other property (for example, vacation-property swapping or a vacation-property club).

Entity-owned apartments. Where an apartment is owned by a corporation, trust, or other legal entity having multiple owners or beneficiaries, the Board may review the use of the apartment to determine whether it is operating as a de facto timeshare in violation of this Section.

Advertising is itself a violation. Advertising, listing, or offering an apartment for occupancy or use of fewer than 180 days — on any platform, in any medium — is a violation of this Section, subject to the same penalties as an actual short-term rental or use, whether or not any booking or occupancy results.

Fine — \$5,000 per day, in lieu of the standard schedule. A violation of this Section is subject to a fine of **\$5,000 per day**, assessed for each day of short-term rental, use, or advertisement that the violation continues after a **fourteen (14) calendar-day** written notice to cease and desist. This fine is assessed **in lieu of** the fine schedule in Section 20.3-How a Fine Works. The right to request a hearing, and the appeal process, are as provided in Section 20.4-Notice and a Chance to Be Heard.

County penalties are separate and additional. In addition to the Association's fine, an owner is subject to **Maui County enforcement fines of up to \$20,000, plus up to \$10,000 per day** of continuing violation, imposed by the County under MCC §19.530.030 for operating a transient vacation rental without a required permit. The County fine is independent of, and cumulative with, the Association's fine.

[MCC §19.530.030; see Legal Reference Statutes, Sections 2.11–2.12]

3.4.2 Owner Cooperation

Failure to provide the documents required by Section 3.4-Rental Enforcement, within the time allowed is itself a violation subject to fine, independent of any underlying rental violation.

3.5 Occupancy Limits

Overnight occupancy may not exceed two (2) persons per bedroom plus two (2) additional persons per apartment, except for children under the age of two and except as required by fair housing law.

3.6 Leasing

[Required by: HRS §514B-154.5(a)(2),(c); Decl §8(a)]

3.6.1 Rules Delivered to Tenant

An owner who leases an apartment must deliver a current copy of the Declaration, Bylaws, and House Rules to the tenant before occupancy.

[Prior HR §3.7.3]

[Required by: Decl §8(a) (2009 Amend.)]

3.6.2 Lease Addendum

Every lease must include, or be accompanied by, a signed addendum in which the tenant acknowledges receipt of the House Rules and agrees to be bound by them. A copy must be filed with the Resident Manager before occupancy.

3.6.3 Filing

The owner must file with the Resident Manager, before occupancy, a copy of the lease agreement together with the tenant's name, the lease commencement and expiration dates, and the tenant's telephone and email. The Resident Manager will treat the lease copy as a confidential Association record.

[Prior HR §3.7.2]

[Required by: Decl §8(a) (2009 Amend.)]

3.6.4 Owner Remains Responsible

Leasing does not relieve an owner of responsibility under Section 1.5-Owner Responsibility.

[Prior HR §3.7.4]

[Required by: Bylaws §2.3; HRS §514B-104(c)]

4 Guests

4.1 Registration

An owner must register guests through the form on the Association website when any guest occupies the apartment without the owner simultaneously in residence. Registration must be submitted **no later than twenty-four (24) hours after the guest arrives on the property**, and must state the guest names, arrival and departure dates, and a contact telephone number.

[Prior HR §3.2]

4.2 Length of Guest Stays

A guest occupying an apartment without the owner in residence is subject to registration under Section 4.1-Registration, the occupancy limits in Section 3.5-Occupancy Limits, and the owner's continuing responsibility for the guest's compliance with these House Rules.

(a) Occupancy for consideration. Any occupancy in exchange for rent or other consideration, of whatever duration and however described, is a rental and is subject to Section 3.3-Minimum Rental Period; No Timesharing, and to the leasing requirements of Section 3.6-Leasing.

(b) Occupancy without consideration. An occupancy by an owner's immediate family, or by another invited guest, without rent or other consideration is not a rental and is not subject to Section 3.3-Minimum Rental Period; No Timesharing, whatever its length. **Immediate family** means the owner's spouse or reciprocal beneficiary, children, stepchildren, parents, stepparents, siblings, grandchildren and grandparents, and the spouse of any of them.

(c) Extended non-family occupancy. An occupancy without consideration by a person who is not immediate family, exceeding **ninety (90) consecutive days** or **one hundred eighty (180) days in any twelve-month period**, must be disclosed to the Resident Manager, who may require the owner to confirm in writing that no consideration is being paid.

(d) Repeated short occupancies. Where an apartment is occupied by a succession of different guests or occupants without the owner in residence — **more than six (6) separate occupancies in any twelve-month period**, or any pattern of turnover consistent with transient use — the Association may treat the pattern as evidence of a violation of Section 3.3-Minimum Rental Period; No Timesharing, and Section 3.4.1-Short-term or Vacation Rental or Use for Either Direct or Indirect Compensation, whether or not any single occupancy exceeds a period stated above.

4.3 Guest Conduct and Amenity Access

Guests are subject to these House Rules. The owner or occupant is responsible for the conduct of guests. Amenity access and guest limits are stated in Section 9-Pool & Jacuzzi, Section 10-Cabana, and Section 11-Gym.

[Prior HR §3.3, §4.3]

5 Conduct

5.1 Nuisance

No owner, occupant, or guest may create or permit any nuisance, or any activity that unreasonably interferes with the peaceful use and enjoyment of the Project by others.

[Prior HR §4.1; Decl ¶8]

Violation of this section is subject to the remedies in Section 20-If a Rule Is Broken, including eviction of a violating tenant or occupant as permitted by law.

[Required by: Declaration ¶8(b); Bylaws §8.7(c)]

5.2 Noise and Quiet Hours

Noise must be kept at a level that does not disturb others at any time.

[Prior HR §4.2]

5.2.1 Quiet Hours

Quiet hours are 9:00 p.m. to 8:00 a.m. daily. During quiet hours, no sound from an apartment, lanai, or common element may be plainly audible inside another apartment with its doors and windows closed.

5.2.2 Amplified Sound

Amplified music and sound systems used outdoors or on lanais must not be audible beyond the boundary of the apartment or its lanai. Subwoofers and speakers must not be placed in contact with floors, ceilings, or party walls.

5.2.3 Floor Coverings

Hard-surface flooring installed above the ground floor must be installed over an acoustic underlayment meeting the standard the Board sets under the Unit Modification Policy (see Section 18-Unit Modifications and Repairs).

[CONFLICT vs UMP 2.1 — this rule permits hard surface over underlayment; Bylaws §8.3(g) as amended 2001 permits only carpet-for-carpet above the ground floor]

5.3 Objectionable Odors

No odor may be permitted to emanate from an apartment or lanai that is offensive or noxious to others, including smoke, cooking odors, and animal odors.

[Prior HR §4.4]

5.4 Unlawful and Prohibited Conduct

No unlawful, offensive, threatening, or harassing conduct is permitted anywhere on the Project, including toward Association employees, Board members, vendors, and other residents.

[Prior HR §4.6]

5.5 Activity Affecting Insurance

No activity is permitted that increases the Association's insurance premium, causes cancellation, or violates a condition of coverage.

[Prior HR §4.7, §5.14]

5.6 Solicitation

Door-to-door solicitation, canvassing, and distribution of commercial materials are prohibited. This does not restrict communications among owners regarding Association governance.

[Prior HR §4.8]

5.7 Drones

Operating an unmanned aircraft (drone) from, over, or on the Project is prohibited without prior written Board approval, except as required by law. Drones may not be used to observe or record any apartment, lanai, or person.

5.8 Security Cameras

5.8.1 Association Cameras

The Association may install cameras on common elements for security purposes. **Signage disclosing the presence of cameras will be posted at the Project entrance and in each monitored common area. The Association's camera policy adopted by the Board governs the placement and operation of the cameras and the retention, review, and release of recordings.** Recordings are Association records; access is governed by Section 20.7-Records Requests, and applicable law.

5.8.2 Owner Cameras

Owner-installed cameras and video doorbells must not be aimed so as to record the interior of another apartment or lanai, or to conduct continuous surveillance of a common element. Installation that penetrates

or attaches to a common element requires Board approval under Section 18-Unit Modifications and Repairs.

6 Smoking

6.1 Definition

"Smoking" means inhaling, exhaling, burning, carrying, or possessing any lighted or heated tobacco product, cannabis, or other plant product, and includes the use of electronic smoking devices, vaporizers, vape pens, and hookahs.

[Prior HR §4.12]

6.2 Where Smoking Is and Is Not Permitted

At a glance — where smoking is and is not permitted

Location	Smoking
All common and limited common elements — pool and jacuzzi, Cabana and its lanai, gym, walkways, stairwells, parking areas, landscaped areas	Prohibited (6.2)
Another owner's apartment or lanai (smoke drifting in)	Prohibited (6.3, 5.3)
Your own lanai	Only if smoke does not migrate to another apartment or lanai (6.3)
Your own apartment interior	Permitted — provided no offensive smoke drift to neighbors and no nuisance (5.1, 5.3)

Smoking is prohibited on all common elements and limited common elements, including the pool and jacuzzi area, the Cabana and its lanai, the gym, walkways, stairwells, parking areas, and landscaped areas.

[Prior HR §4.12; Bylaws §6.4 (Board rule authority)]

6.3 Lanais

Smoking is prohibited on lanais where the smoke migrates into another apartment or onto another lanai. Repeated migration constitutes a nuisance under Section 5.1-Nuisance.

6.4 Disposal

Smoking materials must be extinguished and disposed of in designated receptacles. Discarding any lighted material anywhere on the Project is prohibited and, as a threat to health or safety, is subject to the immediate fine under Section 20.3-How a Fine Works.

6.5 Accommodation

Nothing in this section prevents an owner or occupant from requesting a reasonable accommodation under Section 1.8-Fair Housing Compliance.

[Required by: 42 U.S.C. §3604(f)(3)(B); HRS §515-3(a)(9)]

7 Grills & Fire Safety

7.1 Gas Grilling on Lanais

Gas (propane) barbecue grilling is permitted on an owner's lanai.

Only a grill of a type approved by the Board and installed as part of the lanai may be used.

Free-standing grills, portable grills, and separate stoves or cooking appliances of any kind are not permitted on lanais or anywhere on the common elements.

Charcoal grilling, open fires, and any other open-flame cooking are prohibited on lanais and anywhere on the common elements.

A grill in use must be **attended at all times**, kept clear of railings, walls, furniture, and any combustible material, and must not be operated where heat or grease can damage the structure above.

Ventilation and smoke. Any grill exhaust fan must be **fully operable and switched on for the entire time the grill is in use** — the **high setting is recommended**. **Smoke must not be allowed to enter another apartment**, whether above the grill or on the same level; if smoke is reaching a neighbor, stop using the grill until the problem is corrected.

[NFPA 1 (2024) §10.11.7 as adopted by the Hawaii State Fire Code (HRS §132-3); ventilation and smoke-migration — Robert Sutor Recommended]

[Required by: HI State Fire Code (NFPA 1 §10.11.7) per HRS §132-3; §132-8]

7.2 Propane Safety — Leak and Explosion Hazard

Warning. The propane manifold, hoses, regulator, and fittings on a gas barbecue can develop leaks. **Propane is heavier than air.** Escaping gas therefore does **not** rise and vent upward through the grill — it **sinks and collects in the bottom of the enclosed cabinet beneath the grill**, where it can accumulate unnoticed. If the grill is then ignited while gas has built up in that cabinet, the result can be an explosion. Explosions of this kind cause serious burn injuries.

Anyone using a gas barbecue must take these precautions:

- **Have the grill and its gas connection inspected periodically for leaks**, including the manifold, hoses, regulator, and fittings.
- **Keep the gas shutoff valve at the grill connection accessible and operable, and shut it off when the grill is not in use.**
- **If the grill has been unused for a period, open the cabinet doors before igniting it** and check for the smell of propane. If you detect propane, do **not** ignite the grill — shut off the gas shutoff valve at the grill connection, leave the doors open until the odor clears, and have the grill inspected before further use.

[Robert Sutor Recommended]

7.3 Open Flame

Fire pits, tiki torches, chimineas, and unattended candles are prohibited on lanais and common elements.

[Required by: HI State Fire Code per HRS §132-3; §132-8]

7.4 Fireworks

Fireworks of any kind are prohibited anywhere on the Project.

[Prior HR §4.5, §4.6]

7.5 In-Unit Smoke and Carbon-Monoxide Alarms

Each owner and occupant must keep the **smoke alarms and carbon-monoxide alarms within their apartment in operable condition at all times** — with fresh batteries or battery backup as applicable — test them regularly, and replace each alarm at the end of its service life. Because the apartments are served by **pipelined LP-gas appliances**, a working **carbon-monoxide alarm** is required. This is a Board-adopted requirement, supported by the owner's general fire-safety duty under HRS §132-8 and the adopted fire code; it is the owner's responsibility for the alarms *within the unit* and does not affect the Association's responsibility for the building's common fire-protection systems.

[HRS §132-8 (owner fire-safety duty); Hawaii State Fire Code (NFPA 1 2024 referencing NFPA 72) as adopted under HRS §132-3; Board-adopted requirement]

8 Owner Apartment-Access, Maintenance, Modification, Care

[Required by: HRS §132-8(a),(b)]

8.1 Association Access to Owner's Apartment

8.1.1 Association's Right of Access

The Managing Agent, the Resident Manager, and any other person authorized by the Board have a right of access to an apartment and its limited common elements to make inspections, to correct a condition that threatens another apartment or the common elements, to perform maintenance or repair for which the Association is responsible, or to investigate a suspected violation or a suspected or potential water leak. Except in an emergency, entry is on reasonable advance notice, at a time reasonably convenient to the owner. In an emergency, the Association may enter immediately and without notice, whether or not the owner is present.

[Bylaws §10.1 (Right of Access), §8.4; Declaration §6(c); prior HR §5.2]

8.1.2 Access to an Apartment When the Owner Is Absent

(a) Means of immediate access — strongly urged, not required. Every owner is strongly urged to keep on file with the Resident Manager a means of immediate access to the apartment: a spare key deposited with the Resident Manager; a lockbox holding a unit key, with the combination provided to the Resident Manager; or an access code to a digital lock on the entry door. An owner is not required to provide one.

(b) A local representative is not a substitute in an emergency. An owner may also designate an on-island representative under (f). That is a workable arrangement for a scheduled, non-emergency entry. **It is not a substitute for a means of immediate access in an emergency.** An emergency — a burst supply line, a fire, a gas odor — does not allow time to locate a representative, reach them, wait for them to become available, and wait again for travel to the Project. A representative may be unreachable, off-island, or too far away to arrive while the damage is still containable. Owners who rely on a representative alone should understand that in an emergency the Association will proceed without one.

(c) Consequence of not providing a means of access. By-Laws Section 10.1-Right of Access, provides that where an owner has elected not to provide keys to the managing agent or Resident Manager and forced entry is reasonably required in an emergency, **that owner is solely liable for all costs and expenses arising from the forced entry, including the cost of replacing or repairing any part of the apartment or any common element damaged by or in connection with it.** This rule states an existing obligation under the By-Laws; it does not create a new one.

(d) Emergency access. In an emergency or suspected emergency — including an actual or potential water leak, fire, gas odor, or other hazardous condition — the Resident Manager or another person authorized by the Board may enter the apartment immediately, whether or not the owner is present, **without prior request and without the owner's approval**, and may force entry if necessary, as provided by By-Laws Section 10.1-Right of Access, and HRS §514B-137(b). The Association will notify the owner as soon as reasonably possible that emergency access is being or has been taken, and what was done. **That notification is a courtesy and a record; it is not a precondition to entry, and the Association will not delay entry to obtain it.**

(e) Non-emergency access. The Association may enter to inspect or correct a condition threatening another apartment or the common elements, or to inspect, install, alter, or repair mechanical or electrical services or other common elements, as provided by By-Laws Section 10.1-Right of Access, and HRS §514B-137(a). For any such entry the Association will:

1. give the owner advance written notice stating the purpose of the entry, the reason it is necessary, and the specific scope of what will be inspected or done;
2. make a reasonable effort to schedule the entry on a date and at a time mutually convenient to the owner; and
3. allow the owner reasonable time to arrange for the owner's on-island representative, or another person of the owner's choosing, to be present.

The entry is **strictly confined to the stated scope**. The owner or the owner's designee may be present throughout.

(f) On-island representative. An owner's on-island representative is an individual in close proximity to the Project, other than the Managing Agent, authorized to admit the Resident Manager, to conduct periodic inspections of the apartment while it is closed, and to act for the owner generally in matters concerning the apartment during the owner's absence.

(g) Owner's duty to afford access. An owner must afford access for an entry conforming to (e). An owner who refuses is in violation of these House Rules, By-Laws Section 10.1-Right of Access, and HRS §514B-137(a), and is subject to Section 20.3-How a Fine Works, and By-Laws §2.4. **The Association will not force entry for a non-emergency inspection.**

(h) Record of entry. The Resident Manager will keep a record of every entry into an apartment under this section, whether emergency or non-emergency, stating the date, the time, the purpose, and the persons present. The record is available to the owner of the apartment on request.

[Robert Sutor Recommended; Resident Manager agreed]

8.1.3 Keys and Key Control

Any key, combination, or access code an owner provides is held securely by the Resident Manager, used only for the purposes in this Section, and not duplicated, shared, or disclosed except as necessary to admit an

authorized person. An owner may update or withdraw a deposited key or code at any time; withdrawal reinstates the forced-entry consequences in Section 8.1.2-Access to an Apartment When the Owner Is Absent.

[Robert Sutor Recommended]

8.1.4 Access Credentials

Gate codes, fobs, and access cards are issued to owners and registered occupants only and may not be duplicated, shared, sold, or posted. Owners must report lost credentials immediately and must recover credentials from departing tenants. Replacement fees are set by the Board.

8.1.5 Lockboxes

A realtor or contractor lockbox may be placed only at a location designated by the Resident Manager and must be removed within ten (10) days of closing or completion. A permanent owner-access lockbox under Section 8.1.2-Access to an Apartment When the Owner Is Absent, is not subject to the ten-day removal rule, but its location must be one designated or approved by the Resident Manager.

8.2 Windows

8.2.1 Window Tinting Prohibited

Window tinting and applied window films are not permitted.

[Robert Sutor Recommended — replaces the prior approval-based rule at Prior HR §5.7]

8.2.2 Window Treatments

Curtains, blinds, shades, shutters, and any other window treatment visible from outside an apartment must be consistent with the appearance and residential character of the Project. Bed sheets, foil, cardboard, paper, plastic, flags, and signage may not be used as window coverings. The Board may require removal or replacement of a treatment inconsistent with this rule.

[Robert Sutor Recommended]

8.2.3 Cleanliness

Each owner is responsible for keeping the owner's windows and screens clean and in good repair, **including cleaning the interior window surfaces and maintaining the window screens.**

As a current matter of Association policy, the Association cleans the exterior window surfaces approximately every four months, at Association expense. This is an operational practice, not an obligation; the Board may change or discontinue it, and if it does, each owner becomes responsible for cleaning the owner's exterior windows as well.

[Prior HR §5.12; current exterior-cleaning practice — Robert Sutor Recommended]

8.2.4 Sliding Screen Doors

The lanai sliding screen doors installed as part of the original construction of the Project are maintained, repaired, and replaced by the owner at the owner's expense. Replacement in kind requires no Board approval. Replacement sliding screen doors should match the original sliding screen door and frame in type, color, and finish.

[Robert Sutor Recommended]

8.3 Awnings, Shades, Projections and Reception Devices

8.3.1 Projections

No awning, shades, canopy, shutter, air conditioner, or other device may project through or beyond the exterior face of a building, except as permitted by Section 8.3.2-Antennas and Reception Devices, or approved under the Unit Modification Policy (see Section 18-Unit Modifications and Repairs).

[Prior HR §5.8, §5.9, §10.4]

[Required by: Bylaws §8.3(a); §8.3(b)]

8.3.2 Antennas and Reception Devices

Antennas, satellite dishes, and other reception devices are prohibited on the common elements and the limited common elements. No such device may be installed so as to project beyond a lanai railing, and none may penetrate or attach to any common element.

[Robert Sutor Recommended]

8.4 Nameplates and Doormats

Nameplates may be displayed only in the location, size, and style approved by the Board. Doormats not exceeding 5' × 7' are permitted outside apartment doors; they must be in good repair, harmonious in color and style, and must not display names or messages.

[Prior HR §5.5, §6.10]

8.5 Lanais

8.5.1 Care

Lanais must be kept clean, orderly, and free of stains and debris. Cleaning must not discharge water, soil, or cleaning agents onto another lanai, walkway, or landscaping.

[Prior HR §5.11.1, §5.11.3]

8.5.2 Permitted Items

Only outdoor furniture, potted plants, and similar patio items in good condition are permitted. Plants must sit in saucers that prevent drainage onto surfaces below.

[Prior HR §5.11.5]

8.5.3 Prohibited Items

No storage of bicycles, surfboards, boxes, appliances, tools, or household items; no laundry, towels, or swimwear hung on railings or in view; nothing may be attached to railings or the building without approval; nothing may be shaken, swept, poured, or thrown from a lanai.

[Prior HR §5.11.4, §5.11.6]

[CONFLICT vs UMP 9 — flat no-storage bar here; UMP authorizes construction staging on written RM approval]

8.5.4 Decorations

Seasonal and holiday decorations are permitted on lanais and apartment entry doors from **November 15 through January 15**, and for not more than fourteen (14) days surrounding any other cultural or religious observance. Decorations must be LED or low-heat, must not be affixed to common elements in a manner

causing damage, must not produce sound or animation audible or visible to neighbors during quiet hours, and must be removed promptly at the end of the permitted period. This rule is applied without regard to the religion or culture observed. Decorations may not be attached to, mounted on, or applied to the building stucco or other exterior common-element surfaces. The Board may require the prompt removal of any decoration it reasonably considers unsightly or inappropriate.

[Prior HR §5.11.2]

8.5.5 Storm Preparation

Upon issuance of a tropical storm or hurricane watch for Maui, occupants must remove or secure all furniture, plants, decorations, and loose items from lanais. If the apartment is unoccupied, the owner's on-island representative under Section 8.1-Association Access to Owner's Apartment, is responsible. The Association may secure or remove items at the owner's expense if not addressed.

8.6 Plumbing and Water Apparatus

Toilets, sinks, drains, and water apparatus may be used only for their intended purposes. The cost of repairing damage from misuse is charged to the responsible owner.

[Prior HR §5.4]

8.7 Maintenance, Loading and Risk

Owners must maintain their apartments, fixtures, and equipment in good condition and repair so as not to affect other apartments or the common elements. No apartment or lanai may be loaded beyond its design capacity or altered so as to impair structural integrity. Owners and occupants assume all risk of loss to personal property within apartments and limited common elements. **Water beds, spas, and hot tubs may not be located or installed in any apartment or on any lanai.**

[Prior HR §5.3, §5.10, §5.13, §5.14]

[Required by: Decl §5.4]

8.8 Reasonable Modifications

The Association permits reasonable modifications for owners and occupants with a disability as required by the federal Fair Housing Act, HRS Chapter 515, and Hawaii Administrative Rules §12-46-306, and as provided in Bylaws §8.5 and Declaration ¶9.

The procedure, timing, and conditions for such a request are governed by the Association's Unit Modification Policy and are not restated here. See Section 18-Unit Modifications and Repairs.

[Bylaws §8.5; Decl ¶9; 24 C.F.R. §100.203; NHOM Unit Modification Policy]

[Required by: Bylaws §8.5; 24 C.F.R. §100.203]

8.9 Maintenance Responsibilities — Owner vs. Association

This table summarizes, in plain language, which components an **Owner** maintains, repairs, and replaces, and which the **Association (AOAO)** does. **It is a summary only and yields to the Declaration and Bylaws** in any conflict — the allocation is fixed by those documents (Declaration apartment boundaries §4.3 and Common-Element provisions §5.1–5.4; Bylaws Article VIII). The governing documents assign every component in this table, and the assignment below follows them; where a document is silent the table says so

rather than assuming a default. One item — the connection fitting at a utility tie-in — remains genuinely unassigned and is flagged in the note below.

Component	Responsible	Authority	Note
Apartment interior — walls, floors, ceilings, fixtures, appliances	Owner	Decl. §5.4; §4.3(e)	Association <i>insures</i> (not maintains) under Decl. §12
Plumbing, wiring, heat pumps serving only the unit *	Owner	Decl. §4.3(e)(vi)	Owner from the tie-in inward — see note below
Owner-applied lanai floor covering	Owner	Decl. §5.4	The slab surface itself is the Association's
Air-conditioning serving only the unit	Owner	Decl. §4.3(e)(v), (vi); Bylaws §8.3(b)	Exterior-mounted install needs Board approval
Lanai finished floor surface (slab)	Association	Decl. §5.4; §4.3(f)(e)	Common element
Lanai structure, supports	Association	Decl. §5.1(c); §4.3(f)	Load-bearing / structural = common element
Lanai railings	Association	Decl. §5.1(e); §5.4	Common element
Building exterior; exterior components of perimeter walls	Association	Decl. §4.3(f)(a); §5.4	—
Pipes / wires / conduits serving more than one unit *	Association	Decl. §4.3(f)(d); §5.1	The shared line/main; even where it runs through a unit
Limited common elements — parking stall, storage locker, mailbox (ordinary upkeep)	Association (common expense)	Decl. §5.2, §5.3(b)	See LCE note below
Window glass — repair / replacement	Owner	Decl. §4.3(e)(iv)	The window, its frame and panels along the perimeter are part of the Apartment
Window screens	Owner	Decl. §4.3(e)(iv)	Part of the window assembly, and so part of the Apartment
Window / door caulking and exterior sealant	Association	Decl. §4.3(f)(a)	An exterior component of the perimeter wall, so not part of the Apartment
Exterior faces of windows and doors	Association	Decl. §4.3(f)(a); §5.4	Building exterior, maintained under the standard exterior programme
Exterior door finish	Association	Decl. §5.4	Building exterior, maintained under the standard exterior programme
Lanai underside / soffit finish	Association	Decl. §5.4; §4.3(f)(e)	Finished surface of the lanai, maintained under the standard exterior programme

- **Piping and wiring — where the owner's responsibility ends.** An owner is responsible for any water, gas, drain, condensate/effluent, or electrical line that **serves only their apartment** — from within the unit back to the point where it ties into a line or main that serves **more than one** unit (the primary building source). For a **first-floor apartment this includes under-slab piping** that serves only that unit. From the shared line or main **outward**, the **Association** is responsible. The exact

connection fitting or shutoff valve **at the tie-in** is not assigned by either provision — §4.3(e)(vi) reaches lines serving only one apartment and §4.3(f)(d) reaches lines serving more than one, and the fitting sits at the junction of the two. **Legal Confirmation Required.**

[Declaration §4.3(e)(vi), §4.3(f)(d); Robert Sutor Recommended]

Windows and doors. The recorded documents do assign these. Decl. §4.3(e)(iv) places doors, door frames, windows, window frames and perimeter panels **inside the Apartment**, so glass and screens are the owner's. Decl. §4.3(f)(a) excludes **all exterior components of perimeter walls**, so the exterior faces and the caulking that seals them are common element, and Decl. §5.4 makes their upkeep an Association common expense under the standard exterior-maintenance programme. **Limited common elements.** There is no conflict to resolve: Bylaws §8.1 provides that maintenance and repair of apartments and limited common elements "shall be performed as provided in the Declaration," and Decl. §5.3(b) assesses the cost of maintaining, repairing and replacing all limited common elements to all Apartments as a common expense. The Bylaws defer; the Declaration governs. **One drafting question remains open:** §5.4 describes a programme of exterior *finish* maintenance, and it is not settled whether that obliges the Association to *replace* a failed exterior component or only to maintain its appearance.

[Declaration §4.3, §5.1–5.4, §12; Bylaws §8.1, Article VIII; Robert Sutor Recommended]

[Required by: Decl §4.3(e)(iv), §4.3(f)(a), §5.3(b), §5.4; Bylaws §8.1]

9 Pool & Jacuzzi

All pool and jacuzzi rules are consolidated in this section.

[Robert Sutor Recommended]

9.1 Safety & Owner Responsibility

There is no lifeguard on duty at any time. The pool, jacuzzi, and the entire pool area are used strictly at each user's own risk.

Each owner and occupant is fully and solely responsible, at all times, for the safety and constant supervision of every person the owner, occupant, or their guests bring or admit into the pool area — including children, infants, non-swimmers, and any person needing assistance. That responsibility rests entirely with the owner or occupant and is never assumed by the Association.

Supervision and safety requirements — the owner's or occupant's responsibility to meet and enforce:

- **Use of the pool by inexperienced swimmers requires supervision by a responsible adult.** Any person who cannot stand at the deepest point of the pool with their head comfortably above water, and any inexperienced or non-swimmer, must be accompanied by a responsible adult **at all times** and kept under **constant adult oversight. Under no circumstances may such a person be left unaccompanied in or at the pool.**
- **Any other person who requires assistance in the water** must be supervised within arm's reach by a competent adult.

- It is recommended that young children use protective flotation devices or inflatables while in the pool, even when accompanied by a parent.

The Resident Manager is occasionally present in the pool area and, as a courtesy, may point out a violation of these House Rules when one is observed. The Resident Manager is not a lifeguard and does not serve as a pool safety or etiquette supervisor. No owner, occupant, or guest may rely on the Resident Manager — or on the Association or the Board — to lifeguard, monitor, supervise, patrol, or enforce safety in the pool area. The Association relies on owners and guests to self-police, use sound judgment, and avoid endangering themselves or other occupants of the pool area. These requirements state what users must do; they impose no duty on the Association to monitor or enforce them, and no owner, occupant, or guest may rely on the Association to do so.

Each user — and the owner or occupant who brings or admits that user — assumes all risk of injury, drowning, death, or loss arising from use, misuse, or misconduct in the pool area. The responsible owner or occupant is liable for, and shall indemnify the Association, the Board, the Managing Agent, and the Resident Manager against, every claim, damage, and cost (including attorneys' fees) arising from that person's or their guests' use of the pool area.

[Prior HR §6.8; see 1.7; protective flotation devices recommended — Robert Sutor Recommended]

Board recommendation (Robert Sutor Recommended): The Board should consider requiring every owner to sign a waiver and release of liability covering the owner's and their guests' use of the Association pool, jacuzzi, and gym.

9.2 Hours

Pool and jacuzzi hours are **6:00 a.m. to 9:00 p.m. daily**. The hours of 6:00 a.m. to 9:00 a.m. are reserved for lap swimming.

[Prior HR §6.8]

9.3 Who May Use

Use is limited to owners and occupants and their accompanying guests. An owner or occupant must accompany their guests throughout their use of the pool area. **When the pool area is busy, guests must yield to owners and occupants, and the Resident Manager may limit the number of guests per apartment.**

[Prior HR §6.8]

9.4 Health and Hygiene

Users are encouraged to shower before entering the pool. Persons who are incontinent, including infants and toddlers, must wear waterproof swim pants. A swim diaper alone is not sufficient; it must be covered by a waterproof swim pant. Persons with an infectious or communicable condition, open sores, or bandaged wounds may not enter the water. Spitting, spouting water, and nose-blowing in the water are prohibited.

[Robert Sutor Recommended]

9.5 Glass and Food

Glass and other breakable containers are prohibited in the pool and jacuzzi area. Food is permitted only in the designated table area and must be cleaned up immediately.

[Prior HR §6.8]

9.6 Conduct

No running, diving, horseplay, rough play, or excessive noise. **Speakers and other amplified devices are prohibited in the pool area. Audio from a personal electronic device — including music, video, and telephone or video calls — must be used with headphones or otherwise kept inaudible to others in the pool area. Devices may not be used on speaker.**

A person engaged in a telephone or video call whose side of the conversation is audible to others in the pool area must leave the pool area to continue the call, and may return when the call is finished.

[Robert Sutor Recommended]

9.7 Use of Inflatables, Snorkels & Scuba Gear

Inflatables are permitted in the pool. They are not permitted in the jacuzzi.

An inflatable must be removed from the water when it is not being used, and must be removed from the pool area entirely whenever the owner or the owner's guest using it is not present at the pool.

Snorkels are permitted in the pool area. Scuba gear is prohibited.

[Prior HR §6.8; inflatables permitted in pool only, with removal conditions; snorkels permitted — Robert Sutor Recommended]

9.8 Pool Furniture

Pool furniture may not be reserved by leaving belongings unattended, and may not be removed from the pool area without the Resident Manager's approval. **Before leaving the pool area, users must return all furniture to its original position and lower any umbrella they have raised.**

[Prior HR §6.8]

9.9 Jacuzzi Health Notice

Pregnant women, persons with heart conditions or high or low blood pressure, and persons taking medication should consult a physician before use. Continuous immersion should not exceed fifteen (15) minutes. Children under five (5) may not use the jacuzzi. **A copy of this notice is posted at the jacuzzi.**

9.10 Gates and Closure

Safety gates must never be propped open. The Resident Manager may close the pool or jacuzzi for maintenance, weather, water quality, or safety.

9.11 Smoking and Animals

Smoking is prohibited in the pool area (see Section 6.2-Where Smoking Is and Is Not Permitted). No animal may enter the pool or jacuzzi water; Support Animals otherwise accompany their handlers as provided in Section 16-Support Animals.

[Required by: 24 C.F.R. §100.204; HAR §12-46-306(a)(3)]

10 Cabana

The Cabana (historically called the Pavilion) and its lanai and deck are available to all owners and occupants on an unreserved basis except when reserved under this section.

[Prior HR §6.9]

10.1 Who May Reserve

An owner in good standing may reserve the Cabana for a personal social function at which **the owner will be present**. A reservation is required for any function of **twelve (12) or more persons**. An owner may hold **one reservation per apartment per calendar month**.

[Prior HR §6.9.1]

10.2 How to Reserve

Reservations are made in writing with the Resident Manager on the Association's reservation form, not less than **fourteen (14) days** in advance, and are subject to the Resident Manager's approval. Reservations by a community association or non-commercial organization require Board approval. **No reservations on major holidays.**

[Prior HR §6.9.1]

10.3 Capacity and Hours

Maximum occupancy is the lesser of the posted fire-code capacity or **forty (40) persons**. Reserved functions must end by **9:00 p.m.**, and all cleanup must be complete by **10:00 p.m.**

[Required by: HI State Fire Code per HRS §132-3]

10.4 Deposit and Charges

A refundable **cleaning and repair deposit of \$250** is payable to the Resident Manager at least seven (7) days in advance. The deposit is refunded within two (2) business days after the Resident Manager's inspection. **If damage or cleaning cost exceeds the deposit, the excess is charged to the owner's account** under Section 20.2-Who Is Responsible.

[Prior HR §6.9.2 (\$100 deposit); overage chargeable)]

10.5 What a Reservation Does and Does Not Include

A reservation covers the Cabana, its lanai, and deck. **It does not close the pool or jacuzzi**, which remain available to all residents, unless the Resident Manager or Board determines in advance that closure is warranted by the size or nature of the function.

[Prior HR §6.9.1]

10.6 Alcohol

Alcohol may be served only to persons of legal drinking age and only to invited guests. Alcohol may not be sold, and no admission or donation may be charged. The reserving owner is solely responsible for compliance

with all laws relating to alcohol and assumes all liability arising from its service.

10.7 Amplified Music, Tents and Caterers

Amplified music requires the Resident Manager's advance approval and must comply with Section 5.2-Noise and Quiet Hours. Tents, stages, inflatables, and open-flame catering equipment require advance written approval. Caterers and rental vendors must be scheduled with the Resident Manager.

10.8 Parking for Functions

The reserving owner must advise guests of the parking rules in **Section 13-Parking & Vehicles** and is responsible for guest parking compliance. Functions expected to draw more than ten (10) vehicles require a parking plan approved in advance by the Resident Manager.

10.9 Cleanup

Immediately following the function the reserving owner must: restore furniture to the configuration shown in the Resident Manager's diagram; remove all food and beverages; wipe tables and counters; sweep the lanai; clean the pool deck area if used; remove all decorations; and remove all trash and rental equipment from the Project. Rental equipment must be removed no later than the following morning.

[Prior HR §6.9.3]

10.10 Indemnity

The reserving owner indemnifies, defends, and holds harmless the Association, the Board, the Managing Agent, and the Resident Manager against all claims, damages, and costs, including attorneys' fees, arising from the reserved function.

10.11 Cancellation

Cancellation with less than forty-eight (48) hours' notice may forfeit fifty dollars (\$50) of the deposit at the Board's discretion. A no-show without notice forfeits the deposit.

11 Gym

11.1 Use at Own Risk

Use of the gym and all equipment is at the user's own risk. Users should consult a physician before beginning any exercise program. The Association is not responsible for injury arising from use of the gym or its equipment.

11.2 Hours

5:30 a.m. to 9:00 p.m. daily.

[Prior HR §6.7]

11.3 Who May Use

Use is limited to owners and occupants and their accompanying guests. **An owner or occupant may bring up to two (2) guests at one time** and must remain present with them.

[Prior HR §6.7]

11.4 Age

Persons under **fourteen (14)** may not use the equipment. Persons fourteen through seventeen may use equipment only with an accompanying adult eighteen or older.

[Prior HR §6.7]

11.5 Equipment Etiquette

Equipment is limited to **thirty (30) minutes** per machine when others are waiting. Users must wipe down equipment after use with the supplies provided, return weights to racks, and report damage or malfunction to the Resident Manager immediately.

[Prior HR §6.7]

11.6 Prohibited

No food, no glass containers, no dropping or slamming weights, no personal appliances, and no removal of equipment. **Speakers and other amplified devices are prohibited. Audio from a personal electronic device — including music, video, and telephone or video calls — must be used with headphones or otherwise kept inaudible to others in the gym. Devices may not be used on speaker. A person engaged in a telephone or video call whose side of the conversation is audible to others in the gym must leave the gym to continue the call, and may return when the call is finished.** Commercial personal-training sessions are prohibited without prior Board approval.

[Robert Sutor Recommended]

11.7 Violations

Users violating these rules may be required to leave immediately.

[Prior HR §6.7]

12 Common Areas & Grounds

12.1 General Use

Common elements may be used only for their intended purposes. Climbing on, altering, removing, or tampering with any common element — including landscaping, irrigation, lighting, and Association furniture — is prohibited without prior written Board approval.

[Prior HR §6.4, §6.5]

12.2 Passageways and Access

Driveways, roadways, walkways, stairwells, and entries must be kept clear at all times. Personal property left in these areas may be removed at the owner's risk and expense. Bicycles, skateboards, scooters, mopeds, and motorcycles may not be ridden on walkways.

[Prior HR §6.1]

12.2.1 Fire Egress — Keep Exits Clear

Common stairways, corridors, breezeways, and exit paths are **means of egress** and must be kept **continuously free of all obstructions and available for immediate use**. No storage, furniture, mats

(beyond a permitted doormat), or personal items may block or narrow them, even temporarily. This is required by the adopted State Fire Code and is in addition to the no-storage rule in Section 12.3-No Storage on Common Elements.

[NFPA 1 (2024) §14.4 and the Hawaii State Amendments, as adopted by the Hawaii State Fire Code (HRS §132-3); HRS §132-8]

[Required by: HI State Fire Code (NFPA 1 ch. 14) per HRS §132-3; §132-8]

12.3 No Storage on Common Elements

No personal property may be stored or left on any common element, including lobbies, stairwells, walkways, and landscaped areas. The Association may remove property left in violation as provided by the Act.

[Prior HR §6.3; HRS Ch. 514B]

12.3.1 Bicycles and Beach Equipment

Bicycles, surfboards, and beach equipment must be stored inside the owner's apartment, or in a storage area the Board designates for that purpose if one is provided. Storage on lanais is governed by Section 8.5.3-Prohibited Items.

12.4 Signs

No sign, notice, advertisement, or banner may be placed on any common element or displayed so as to be visible from outside an apartment, except (a) notices posted by the Association, (b) nameplates permitted under Section 8.4-Nameplates and Doormats, (c) one temporary "For Sale" or "For Rent" sign if and where the Board designates, and (d) as required by law. Every sign permitted under this Section must be approved by the Board in writing before it is installed or displayed, other than notices posted by the Association.

[Prior HR §6.2, §10.3]

12.5 Association Furniture

Furniture and equipment provided by the Association may not be removed from its designated area, altered, or reserved for private use except under Section 10-Cabana.

[Prior HR §6.6]

12.6 Damage to Common Elements

Damage to any common element caused by an owner, occupant, guest, or contractor is charged to the responsible owner under Section 20.2-Who Is Responsible.

[Prior HR §6.11]

13 Parking & Vehicles

13.1 Stall Types

13.1.1 Assigned Covered Stalls

Each apartment has **one (1) assigned covered parking stall**, which is a limited common element appurtenant to that apartment as shown in the Declaration and its recorded exhibits. Only the owner and occupants of that apartment, and their guests with permission, may use it.

[Decl Exhibit C as amended 2001; Prior HR §2.1, §7.2]

[Required by: Decl §5.2(a), §4.3(b); Exhibit C (1st Amend. 2001)]

13.1.2 Uncovered Stalls

Uncovered stalls throughout the Project are **unassigned** and available to owners, occupants, and guests on a first-come, first-served basis. Uncovered stalls are not appurtenant to any apartment and may not be reserved, marked, or treated as private. **No more than two (2) vehicles per apartment may be registered and parked at the Project. An apartment's second vehicle uses an unassigned uncovered stall on the same first-come, first-served basis as any other user.**

[Prior HR §7.5]

[Board to review: owners are commonly understood to have the use of a second, uncovered stall. Nothing in the Declaration, its recorded exhibits, or the prior House Rules allocates uncovered stalls to individual apartments. If the Board intends a per-apartment uncovered allocation, that should be confirmed against the Declaration and the recorded parking exhibit before adoption, since allocating exclusive use of a common element may require action beyond a House Rule.]

[Required by: Bylaws §8.7(f)(i) (2001 Amend., recorded instrument no. 2001-096485)]

13.2 Vehicle Registration

Every vehicle regularly parked at the Project must be registered with the Resident Manager, stating make, model, color, and license number. Vehicles must display valid, unexpired registration and safety inspection and be in operable condition. The Board may require a decal or hangtag. On request, the owner must provide the Resident Manager with copies of documentation showing that the vehicle's registration and safety inspection are valid and unexpired.

[Prior HR §7.1]

13.3 Use of Another's Stall

No person may use a covered stall appurtenant to another apartment without that owner's prior written permission, a copy of which must be filed with the Resident Manager.

[Prior HR §7.2]

13.4 Parking Only in Marked Stalls

Vehicles may be parked only in marked stalls. Parking on roadways, driveways, shoulders, landscaped areas, or anywhere not marked as a stall is prohibited, except for active loading and unloading not exceeding thirty (30) minutes.

[Prior HR §7.3, §7.5]

13.5 Prohibited Vehicles

Boats, boat trailers, utility trailers, jet skis, recreational vehicles, campers, commercial vehicles displaying commercial signage, and trucks larger than a standard pickup may not be parked at the Project without prior written Board approval.

[Prior HR §7.1]

13.6 Guest Parking

Guests must use unassigned uncovered stalls. No guest vehicle may remain at the Project longer than **fourteen (14) consecutive days** without the Resident Manager's written approval. Owners and occupants may not use guest parking for long-term storage of a vehicle.

[Prior HR §7.5]

13.7 Abandoned and Inoperable Vehicles

A vehicle that is inoperable, unregistered, or has not moved in thirty (30) days may be treated as abandoned.

13.8 Towing

After written notice to the owner or occupant, or after seventy-two (72) hours' notice affixed to the vehicle where the responsible person is unknown, the Association may tow any vehicle parked in violation of these House Rules, at the vehicle owner's sole risk and expense, in accordance with HRS Chapter 290 and applicable county requirements. Vehicles blocking access, a fire lane, a driveway, or another owner's assigned stall may be towed immediately without prior notice. The Board will designate the towing company and post signage as required by law. Parking in violation of these House Rules is subject to fines in accordance with Section 20.3-How a Fine Works, in addition to any towing under this Section.

[HRS Ch. 290]

[Required by: HRS §290-11(a),(b)(3)]

13.9 Repairs and Washing

No vehicle repairs, maintenance, or fluid changes may be performed at the Project, except minor repairs necessary to make a vehicle operable enough to be removed. **Vehicle washing is permitted only in the designated car-wash area and only during the days and hours posted there; washing a vehicle in a parking stall is prohibited. Users must rinse and clean the wash area immediately after use.** The designated car-wash area is identified on the NHOM condominium map maintained by the Resident Manager. A drip pan must be used under any vehicle that leaks, and the responsible owner must clean any stain.

[Prior HR §7.6]

13.10 Stall Condition and Storage

Owners are responsible for the cleanliness of their assigned stall. No personal property — including lumber, furniture, crates, bicycles, surfboards, and storage containers — may be kept in a parking stall.

[Prior HR §7.7]

13.11 Speed and Safety

The posted speed limit must be observed. Racing engines, squealing tires, and excessive noise are prohibited. Pedestrians have the right of way.

[Prior HR §7.8]

13.12 Electric Vehicle Charging

13.12.1 Right to Install

Consistent with HRS §196-7.5, the Board will not unreasonably restrict the installation of an electric vehicle charging system in a stall an owner owns or has exclusive use of.

[HRS §196-7.5 — the prior rules were silent]

[Required by: HRS §196-7.5(a),(b)]

13.12.2 Application

An owner must apply in writing under the Unit Modification Policy (see Section 18-Unit Modifications and Repairs) before installation. The application must include equipment specifications, the proposed electrical route, the licensed contractor, and evidence of insurance.

[Required by: HRS §196-7.5(c)(3)(A)–(C)]

13.12.3 Owner Responsibility

The installing owner is responsible, at the owner's expense, for installation, separate metering or reimbursement of electricity consumed, maintenance, repair, insurance, damage to common elements, and removal and restoration if required. These obligations run with the apartment and bind successors.

[Required by: HRS §196-7.5(d)(1),(2)]

13.12.4 Extension Cords

Charging by extension cord or any temporary conductor run from an apartment or across a common element is prohibited.

13.13 Solar Energy Devices

No solar energy device may be installed at the Project without the prior written consent of the Board, as provided by HRS §514B-140(c)(1), Additions to and alterations of condominium.

[Robert Sutor Recommended]

[Required by: HRS §514B-140(c)(1)]

14 Deliveries & Moving

14.1 Protective Pads Required

Protective elevator pads must be used for every move and for the delivery of any bulky item.

Pads and floor coverings are available from the Resident Manager and must be arranged in advance.

Corridors, walkways, and landscaping must be protected and left clean.

[Prior HR §4.11; Robert Sutor Recommended]

14.2 Scheduling

Moves and deliveries of bulky items must be scheduled with the Resident Manager at least **three (3) business days** in advance.

14.3 Permitted Times

Moves and bulky deliveries may occur **Monday through Saturday, 8:00 a.m. to 5:00 p.m.** No moves on Sundays or State or federal holidays.

14.4 Workers and Delivery Vehicles

Workers and delivery persons must use the occupant's assigned stall or a designated loading area unless the Resident Manager approves otherwise in advance.

[Prior HR §7.4]

14.5 Parcel Delivery

The Association is not responsible for packages delivered to the Project. Packages may not be left in walkways or common areas.

[Prior HR §5.15]

14.6 Damage and Debris

Damage to common elements during a move or delivery is charged to the owner under Section 20.2-Who Is Responsible. Moving materials and packaging must be removed by the owner and may not be placed in Association receptacles.

[Prior HR §6.11]

15 Trash & Recycling

15.1 Disposal

All refuse must be bagged, securely closed, and placed in designated receptacles. Refuse may not be left outside apartment doors, in walkways, stairwells, or any common element.

[Prior HR §4.9]

15.2 Recycling

Owners and occupants must comply with any recycling program adopted by the Board and with Maui County requirements, including separation of recyclables and breakdown of cardboard.

[Prior HR §4.9]

15.3 Bulky and Special Waste

Furniture, appliances, mattresses, electronic waste, batteries, paint, chemicals, and other hazardous or bulky items may not be placed in Association receptacles. Owners are responsible for lawful disposal at their own expense and must coordinate with the Resident Manager.

15.4 Construction Debris

Construction debris must be removed from the Project by the owner or contractor at the owner's expense and may not be placed in Association receptacles. Construction debris is also governed by the Unit Modification Policy (see Section 18-Unit Modifications and Repairs).

[Prior HR §10.6]

16 Support Animals

16.1 No Pets

No livestock, poultry, rabbits, dogs, cats, or other animals of any kind are permitted at the Project, except fish and other aquarium animals kept within an apartment.

[Prior HR §8.1; Bylaws §10.7(a) as amended 2019]

[Required by: Bylaws §10.7(a) (2019 Amend.)]

16.2 Support Animals Permitted

Notwithstanding Section 16.1-No Pets, **Support Animals** as defined in Section 2.1-Defined Terms — that is, service animals or assistance animals **upon which disabled Owners or Occupants depend for assistance** — are permitted as a reasonable accommodation in accordance with the federal Fair Housing Act, HRS Chapter 515, and Hawaii Administrative Rules § 12-46-306. Recorded Bylaws §10.7(b) states the permission in those terms; the dependency qualification is part of the recorded text. A Support Animal is not a pet and is not subject to any pet prohibition, fee, or deposit.

[Prior HR §8.1; Bylaws §10.7(b); HAR §12-46-306; HRS Ch. 515; 42 U.S.C. §3604(f)]

[Required by: HAR §12-46-306; Bylaws §10.7(b) (2019 Amend.)]

16.3 Support Animal Policy

Requests for a Support Animal, the information the Association may require, the approval process, and the conduct rules applicable to Support Animals are governed by the **Support Animal Policy**, which is incorporated into these House Rules by reference. Requests are made to the Resident Manager. Every person with a Support Animal at the Project must comply with that Policy.

[Prior HR §8.1; Robert Sutor Recommended]

[Required by: HRS §515-3(a)(9)]

16.4 Basic Conduct

Without limiting the Support Animal Policy, every Support Animal at the Project must be under the handler's control at all times, must not be left unattended, and must not create a nuisance under Section 5.1-Nuisance. All animal waste must be collected immediately and disposed of properly. Support Animals must be relieved only in the Board-designated relief areas shown on the condominium map maintained by the Resident Manager; see the Support Animal Policy. A Support Animal must not create excessive noise, as defined in the Support Animal Policy, Section 3; repeated or persistent violation is subject to a fine under Section 20-If a Rule Is Broken. Recorded Bylaws §10.7(b) permits a Support Animal to walk throughout the common areas while under control of its handler, and requires that before any animal is ejected the handler be given an opportunity to correct the problem by measures short of ejection; ejection is available only where the Board reasonably determines that less drastic alternatives have failed.

[Bylaws §10.7(b) — control standard and cure-before-ejection sequence]

16.5 Liability and Indemnity

Neither the Board, the Association, the Managing Agent, nor the Resident Manager is liable for any loss, damage, or injury to persons or property caused by or arising in connection with any owner's, occupant's, or guest's animal. **The responsible owner indemnifies, defends, and holds harmless** the Association, the Board, the Managing Agent, and the Resident Manager against all claims, damages, and costs, including attorneys' fees, arising from the animal.

[Prior HR §8.2; Bylaws §10.7(c) — restores the indemnity the prior House Rule omitted]

[Required by: Bylaws §10.7(c) (2019 Amend.)]

17 Association Staff & Vendors

17.1 Scope of Employee Work

Association employees work on common elements and Association property. They may not be directed to perform work within an apartment or on a limited common element for an owner's private benefit.

[Prior HR §9.1, §9.2]

17.2 Requests

All requests for maintenance or service go through the Resident Manager.

[Prior HR §1.11, §9.2]

17.3 No Interference

Owners, occupants, and guests must not interfere with, obstruct, or direct Association vendors and contractors performing work for the Association — including landscaping and grounds crews, pool and jacuzzi service, pest control, window cleaners, elevator technicians, and building maintenance contractors. Requests concerning Association work are directed to the Resident Manager, not to the vendor.

[Prior HR §9.3]

17.4 Respectful Treatment

Abusive, threatening, or harassing conduct toward an Association employee, Board member, or vendor is a violation subject to the immediate fine for harassment under Section 20.3-How a Fine Works.

18 Unit Modifications and Repairs

All additions, alterations, improvements, modifications and repairs to an apartment, a limited common element, or a common element are governed by the Association's **Unit Modification Policy**, incorporated into these House Rules by reference. Owners and their contractors must read that Policy before any work begins. Its requirements are not restated here.

The Unit Modification Policy covers, among other things: requests for modification and Board approval; rules affecting contractors on site; contractor licensing, insurance and bonding; permits; working hours; construction debris; water shut-off; damage to common elements; storage of construction materials; use of

Association employees and equipment; inspection; and fines. Fines and the process for contesting or appealing a fine are governed by Section 20-If a Rule Is Broken, of these House Rules.

The Resident Manager may order any modification work that has not complied with the Unit Modification Policy — including work begun without a required approval or permit, or work that deviates from the approved scope — to stop immediately; stopped work may not resume without the Board's written authorization. Work performed without a required approval or permit must be removed and the area restored at the owner's expense, in addition to any fine under Section 20-If a Rule Is Broken.

[Unit Modification Policy §3.3; Bylaws §6.5, §8.3(a), §8.4; HRS §514B-140]

19 Insurance & Water Damage Prevention

19.1 Owner Insurance

Each owner must maintain a condominium unit-owner (HO-6) policy covering the apartment's interior, improvements and betterments, personal property, personal liability, and loss assessment, in amounts not less than those the Board specifies from time to time. Owners must provide evidence of coverage on request.

[Required by: Decl §5.4]

19.2 Master Policy Deductible

Where a loss originates within an apartment or its limited common elements, the applicable master policy deductible is charged to that apartment's owner to the extent permitted by the Declaration, the Bylaws, and the Act. Before the deductible is assessed against the owner, the Association will provide notice and an opportunity for a hearing, as required by HRS §514B-143(d)(2).

[Decl ¶12; HRS §514B-143(d)(2)]

[Required by: HRS §514B-143(d)]

19.3 Water Supply Lines

Owners must maintain water supply lines in good condition. **Braided stainless steel supply lines are required** for washing machines, dishwashers, icemakers, toilets, and sinks. Rubber or plastic supply hoses must be replaced. Supply lines and hoses must be replaced at intervals not exceeding **five (5) years**.

19.4 Water Heaters

Water heaters more than **twelve (12) years** old must be replaced. Water heaters must be installed in a drain pan plumbed to an approved drain or fitted with an approved leak-shutoff device.

The owner must clearly and durably mark the water heater with its installation date, if that date is known. If no installation date is known or marked, the water heater is presumed to be original equipment — more than twelve (12) years old and non-compliant — and must be replaced, unless the owner verifies from the water heater's serial number or model that it is within the twelve-year age limit.

[install-date marking and presumption — Robert Sutor Recommended]

An owner has twenty-four (24) months from the adoption of these House Rules to bring a non-compliant water heater into compliance. Compliance must be achieved sooner if the apartment is transferred, or if work requiring approval under Section 18-Unit Modifications

and Repairs, is performed on the apartment, in which case it must be achieved before the transfer closes or before the work is completed.

19.5 Extended Absence

An occupant who will leave the apartment unoccupied for **more than seventy-two (72) hours** must shut off the water at the apartment's control valve, to reduce the risk of an undetected leak.

[Prior HR §3.7.5]

19.6 Reporting Leaks

Any leak, water intrusion, or moisture damage must be reported to the Resident Manager **immediately** upon discovery. Delay in reporting that increases the loss may be charged to the responsible owner.

19.7 Access for Investigation

Owners must permit access under Section 8.1-Association Access to Owner's Apartment, for investigation and repair of a suspected leak. Refusal or delay that increases the loss may be charged to the owner.

[Required by: Bylaws §10.1]

20 If a Rule Is Broken

The Association enforces these House Rules the same way for everyone. This Section explains what can happen if a rule is broken, how a fine works, and how to contest one.

20.1 What the Association Can Do

In addition to fining, the Association may: send a notice to stop; require the owner to make the violator comply; begin eviction of a violating tenant or occupant as the law allows; enter an apartment or limited common element to correct a violating condition at the owner's expense; suspend amenity privileges as the law allows; and recover its enforcement costs, including attorneys' and consultant fees.

[Prior HR §11.1; HRS §514B-104(b)(3),(c); Bylaws §6.5]

20.2 Who Is Responsible

The **owner** is responsible. An owner is responsible for any violation — and for paying any fine — caused by the owner or by the owner's tenants, family members, guests, agents, or anyone else at the apartment with the owner's permission. An owner is also liable for the cost of repairing damage to common or limited common elements caused by any of them; the Resident Manager assesses the damage and the Board sets the cost.

[Prior HR §11.2; Bylaws §2.3, §2.4]

20.3 How a Fine Works

Fining authority rests with the Board. Each notice tells you the rule that was broken, a short description of the violation, the date, the apartment, and the people involved if known. A notice is hand-delivered or sent by certified mail to the owner at the address on file (see Section 1.12-Owner Contact Information); if someone other than the owner committed the violation, a copy also goes to that person — but the owner remains responsible for payment.

Fines follow this schedule:

Step	What happens
First violation	Written warning; 14 days to correct (the Board may set a shorter or longer period for cause)
Not corrected within 14 days	Second notice; \$50
Still not corrected within 14 more days	Third notice; \$100
Violation continues	\$250 per day , up to \$5,000 per violation
Violation recurs	Each recurrence may be treated as a new violation or as continuing
Damage, a threat to health or safety, harassment, or illegal conduct	\$1,000 , charged immediately on written notice, without the warning steps above
Short-term / vacation rental or use, or advertising it (see Section 3.4.1)	Fined under Section 3.4.1 — \$5,000 per day after a 14-day cease-and-desist notice, in lieu of this schedule; separate Maui County fines also apply

Short-term-rental and vacation-rental violations — including advertising — are fined **as provided in Section 3.4.1-Short-term or Vacation Rental or Use for Either Direct or Indirect**

Compensation: \$5,000 per day for each day the violation continues after a 14-calendar-day written notice to cease and desist, in lieu of the schedule above, with the hearing and appeal rights in Section 20.4-Notice and a Chance to Be Heard. Maui County enforcement fines (up to \$20,000 plus up to \$10,000 per day under MCC §19.530.030) apply separately and in addition.

[Board-set reasonable fines under HRS §514B-104(a)(11); Bylaws §6.1(o); Robert Sutor Recommended]

20.4 Notice and a Chance to Be Heard

Before a fine becomes final, you may ask the Board for a hearing. Put your request in writing within **20 days** of the notice, and include a copy of the notice, the facts as you see them, the reason for your appeal, any witnesses, and any documents you want considered. You may appear before the Board. The Board meets in executive session to protect your privacy, lets you present your side and question adverse witnesses, and gives you a written decision within **30 days** of the hearing. The Board may reduce, suspend, or cancel the fine.

[Prior HR §11.5; HRS §514B-104(a)(11),(b)(2)]

20.5 Paying a Fine

A fine is due within **30 days** after it becomes final. Asking for a hearing on time pauses the due date until the Board decides — but it does not by itself stop a daily fine from adding up, which the Board may waive in whole or part for good cause.

[Prior HR §11.4]

20.6 Collection

Fines, late charges, and enforcement costs are the owner's personal debt and are collected as the law allows. **A fine is not a common-expense assessment**, and the Association cannot use a nonjudicial or power-of-sale lien to foreclose for unpaid fines, late fees, or legal fees.

[HRS §514B-146]

20.7 Records Requests

An owner may inspect and copy Association records as provided by HRS §§ 514B-154 and 514B-154.5. The Managing Agent is the primary point of contact for requests to inspect or copy Association documents, and for questions about those documents or access to them. Requests are made in writing to the Managing Agent, which will respond within the time the Act requires. The Association may charge the actual cost of copying and the preparation cost the Act permits.

[HRS §§514B-154, 514B-154.5 — the prior rules were silent]

[Required by: HRS §514B-154.5(c); §514B-154]

20.8 Mediation

An owner contesting a fine, late fee, lien fee, attorneys' fees, or other charge (other than a common-expense assessment) may demand mediation in writing, as the law provides. Nothing here limits any party's rights under HRS §§514B-161 and 514B-162.

[Prior HR §11.5(d); HRS §§514B-161, 514B-162]

21 General Provisions

21.1 Severability

If any provision of these House Rules is held invalid or unenforceable, the remaining provisions remain in full force.

21.2 Conflict

Any provision inconsistent with applicable law, the Declaration, or the Bylaws is deemed modified to the extent necessary to conform, and otherwise severed.

[Required by: Decl ¶18 (2007 Amend. ¶19); Bylaws §2.5]

21.3 Waiver

The Association's failure to enforce any provision on any occasion is not a waiver of its right to enforce that or any other provision thereafter.

21.4 Supersession and Effective Date

These House Rules supersede and replace in their entirety all prior Rules and Regulations of the Association, including the House Rules dated April 29, 2026, and the Rules and Regulations revised September 14, 2017. They take effect on the date adopted by the Board.

22 Certificate

Adopted by resolution of the Board of Directors of the Association of Apartment Owners of Na Hale O Makena at a duly noticed meeting held on _____, 2026, at which a quorum was present.

President

Secretary